

Surendra v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 3 December 2024 · 2024:AHC:189285-DB · Writ-C No. 40030 of 2024 · **Writ disposed; liberty to file a clause 6.5 representation**

HEADNOTE

Writ seeking quashing of a Tehsildar's recovery citation, and a direction to decide an earlier application before the Junior Engineer, disposed of without examination on merits, with liberty to file within ten days a detailed complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer. If filed in time, that representation is to be decided on merits, and coercive measures are not to be taken for one month or until its disposal, whichever is earlier.

FACTUAL SUMMARY

Surendra petitioned the Allahabad High Court against the State of Uttar Pradesh and three others. He sought quashing of a recovery citation dated 21 September 2024 issued by the Tehsildar, Tehsil Khaga, District Fatehpur, and a direction that the authorities decide his application dated 27.11.2002¹, as printed, moved before the Junior Engineer, Khaga. Respondents 2 and 3 were Purvanchal Vidyut Vitran Nigam Limited, through its Managing Director, and the Executive Engineer (Prescribed Authority), Electricity Distribution Division, Fatehpur. Their counsel placed instructions dated 29 November 2024 on record.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Writ against recovery citation relegated to clause 6.5

HOLDING

A writ seeking quashing of a Tehsildar's recovery citation and a direction to decide an earlier application before the Junior Engineer is disposed of, without examination on merits, with liberty to the consumer to file within ten days a detailed complaint or representation under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer (Prescribed Authority). If that remedy is availed in time, the Executive Engineer is to consider and decide it on its own merits in accordance with law, and, as agreed, no coercive measures are to be taken for one month or until disposal of the representation, whichever is earlier. Failure to file within ten days vacates that protection. ¶ 4-8

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ was disposed of with liberty to avail clause 6.5 within ten days; the Court recorded that it had not considered the recovery citation on merits. ¶ 4-5

clause-6.5-representation-executive-engineer The detailed complaint or representation lies before respondent No. 3, the Executive Engineer (Prescribed Authority), Electricity Distribution Division, Fatehpur, who is to decide it on merits in accordance with law. ¶ 5-6

para-6.5-objection-before-coercive-recovery As agreed by the licensee and in the interest of justice, no coercive measures are to be taken for one month or until disposal of the clause 6.5 representation, whichever is earlier, provided it is filed within ten days; otherwise the protection stands vacated. ¶ 7-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CITATION DATED 21.09.2024 AND OF THE APPLICATION DATED 27.11.2002¹ BEFORE THE JUNIOR ENGINEER, KHAGA

The Court expressly declined to examine the case on merits and left the grievance to a fresh clause 6.5 representation before the Executive Engineer. ¶ 8

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.